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In The Matter of Vivian L. Manfree Revocable Trust

25PR000179

[1] PETITION TO (1) INVALIDATE/REFORM TRUST INSTRUMENTS BASED UPON UNDUE INFLUENCE, FRAUD, MISTAKE; (2) FOR REFORMATION; (3) TO COMPEL TRUSTEE TO ACCOUNT; (4) TO RESTRAIN TRUSTEE FROM USING TRUST ASSETS TO DEFEND; (5) FOR PRELIMINARY INJUNCTION PREVENTING TRUSTEE FROM SPENDING TRUST FUNDS TO DEFEND [Filed 7/24/25]

TENTATIVE RULING: In light of the First Amended Petition, filed May 18, 2026, and noticed for hearing on July 23, 2026, the present petition appears moot. The hearing is therefore VACATED.

[2] MOTION TO ENFORCE INTERIM SETTLEMENT AGREEMENT [filed 5/13/26]

TENTATIVE RULING: The matter is CONTINUED to July 23, 2026 at 8:30 a.m. in Dept. A to coincide with the hearing on the First Amended Petition. The relief requested in the present Motion—i.e., to compel Respondents to account—is the same relief requested in the First Amended Petition, which ordinarily goes to an evidentiary hearing. Moreover, the subject matter of the present Motion—i.e., whether or not Respondents' accounting is code-compliant—is a matter that generally comes on for an evidentiary hearing after formal objections to the accounting are raised and settled. Thus, the Court does not intend to provide a Tentative Ruling on this Motion; rather, the continued hearing will be a case management conference on both the First Amended Petition and the present Motion.

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Estate of Cicero Jones, Jr.

26PR000088

PETITION FOR PROBATE OF WILL AND FOR LETTERS TESTAMENTARY
AND AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT
ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: The Petition is GRANTED. Richard S. Thomas is appointed as probate referee. Petitioner shall immediately submit Proposed letters (DE-150) for the Court's signature. The matter is set for a Status Hearing Re: Final Distribution on June 10, 2027, at 8:30 a.m. in Dept. A. The Status Hearing may be vacated or continued without appearances needed if, prior thereto, the personal representative files a petition for an order for final distribution or a report of status of administration pursuant to Probate Code section 12200. The Clerk is directed to provide notice to the parties.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Nordby Construction Company v. Signorello Winery

23CV000838

CLAIM OF EXEMPTION

APPEARANCE REQUIRED for hearing on the merits.

By Minute Order of June 3, 2026, the Court continued the matter, allowed briefing on notice and timing issues raised by Defendant/Judgment Debtor at the hearing, and stated it would post a Tentative Ruling regarding the notice and timing issues. Three issues were raised: (1) the hearing must be held within 30 days of notice (Code Civ. Proc., § 703.570, subd. (a)); (2) not less than 10 days' notice must be given (Code Civ. Proc., § 703.570, subd. (b)); and (3) Sixteen court days' notice must also be given. On June 4, 2026, Judgment Debtor filed an Objection to the Creditor's Opposition to Claim of Exemption, addressing the third issue identified in the preceding sentence.

As to the first point, while the default rule is that the hearing must be held within 30 days of notice, an express exception exists where the hearing is "continued by the court for good cause." (§ 703.570, subd. (a).) Here, the hearing was properly noticed within 30 days of filing, on May 21, 2026. By Minute Order of May 21, 2026, the Court continued the hearing to allow the claim of exemption to be filed, which is ordinarily the levying officer's responsibility (see § 703.550, subd. (a)). The Court implicitly found good cause for the continuance. Moreover, prior to the continued hearing on June 3, 2026, the Judgment Creditor filed a Proof of Service demonstrating that it had properly served its Objection to the Claim of Exemption on the Levying Officer, which statutorily triggered the Levying Officer's duty to file the Claim of Exemption. Thus, given that the Judgment Creditor has shown the procedural defect was not the fault of the Judgment Creditor, the Court confirms that good cause existed for the continuance. The additional continuance from June 3, 2026 to June 10, 2026 was for good cause given the parties' agreement thereto. (See 6/3/26 Minute Order.)

As to the second point, 17 days' notice was given here, and therefore, the notice complies with section 703.570, subdivision (b). (See 5/4/2026 Proof of Service.)

As to the third point, Judgment Debtor cites to Code of Civil Procedure, section 1005, subdivision (b)(3) in support of the proposition that 16 court days' notice is also required. The section provides "[w]ritten notice shall be given, as prescribed in subdivisions (b) and (c) [including the 16 court day requirement], for the following motions: ... (3) Notice of Hearing for Claim of Exemption under Section 706.105." Section 706.105 falls under Chapter 5 regarding Wage Garnishments. Section 706.105, subdivision (e)(1), in turn, requires notice of a hearing on an objection to a claim of exemption *made under section 706.051* to be served on the judgment debtor and levying officer "[a]t the time prescribed by subdivision (b) of Section 1005." (See also Code Civ. Proc., § 1005, subd. (a)(3).) Section 706.051 is also under Chapter 5 regarding Wage Garnishments.